

Court No. - 39

Case :- WRIT - C No. - 33405 of 2018

Petitioner :- Pancham Singh

Respondent :- Chairman U.P. Power Corporation Limited Shakti Bhawan And 2 Others

Counsel for Petitioner :- Pawan Kumar Singh, Sudeep Dwivedi

Counsel for Respondent :- C.S.C., Abhinav Ojha, Narendra Kumar Tiwari

Hon'ble B. Amit Sthalekar, J.

Hon'ble Surya Prakash Kesarwani, J.

Heard Sri Sudeep Dwivedi, learned counsel for the petitioner, Sri Abhinav Ojha, learned counsel for the respondent No.1, Sri Narendra Kumar Tiwari, learned counsel for the respondent No.2 and learned standing counsel for respondent No.3.

The petitioner in the writ petition is seeking quashing of the impugned recovery notice dated 09.08.2018 whereby a notice of demand of Rs.44,398/- has been issued against him.

The facts of the case are that the petitioner purchased a residential plot in the name of his wife and for the purposes of construction, a submersible pump was installed. On 19.02.2015, a raid was conducted by the Vigilance Team and the petitioner was caught stealing electricity from the pole and a penalty of Rs.10,000/- was imposed against him, which according to him he has paid. Thereafter, the petitioner submitted an application before the Electricity Department for meter connection, which was granted on 24.02.2015 and the meter was installed on 02.03.2015. Thereafter, the notice of demand has been issued against him. The contention of the petitioner is that the property has been purchased in the name of his wife and, therefore, the notice of demand cannot be issued against him.

In our opinion, the petitioner should represent under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the respondent No.2- Purvanchal Vidhut Vitran Nigam Limited through Executive Engineer, Fathan, District Mirzapur and vent his grievances there.

We, therefore, **dispose of** the writ petition with liberty to the petitioner to represent before the respondent No.2. If such a representation is made by him within 15 days from today, the respondent No.2 shall consider and decide the same in accordance with law within a further period of one month thereafter. Till such decision is taken by the respondent No.2, no coercive action shall be taken against the petitioner in respect of the impugned recovery notice dated 09.08.2018.

Order Date :- 3.10.2018

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